

Court No. - 3

Case :- WRIT - C No. - 18466 of 2021

Petitioner :- Jagdish Narayan

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Bal Krishna Pandey

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

Heard Mr. Bal Krishna Pandey, learned counsel for the petitioner and Mr. Narendra Kumar Tiwari, learned counsel for the respondent no.2.

The petitioner is aggrieved by the fact that his objection to the provisional assessment dated 3.4.2021 has not been decided and recoveries are being pressed. Those recoveries are stated to be contrary to the scheme of the UP Electricity Supply Code, 2005.

Relying upon the Clause 6.8(b)(i) of the UP Electricity Supply Code, 2005, it has been submitted by the learned counsel for the petitioner that the petitioner first received the provisional assessment bill dated 3.4.2021 on 28.5.2021. He filed his objection within 15 days therefrom on 8.6.2021 before respondent no.2 which is still pending. Therefore, no demand can be raised till the objection is disposed of.

Prima facie, the contention raised by the learned counsel for the petitioner appears to have force. In such facts, no useful purpose would be served in keeping the present petition pending or calling for counter affidavit at this stage.

The writ petition is disposed of with the following directions:

1. The petitioner shall file a copy of this order alongwith a fresh objection before respondent no.2 within two weeks.
2. Thereafter respondent no.2 shall fix a date for hearing on the petitioner's objection within a period of two weeks therefrom.
3. After hearing the parties, the respondent no.2 shall dispose of the objection raised by the petitioner by a reasoned and speaking order strictly in accordance with law within a further period of two weeks from the date of hearing.
4. For a period of two months from today or till disposal of the

aforesaid objection, whichever is earlier, no coercive measure shall be adopted against the petitioner, subject to his complying with the terms of this order.

5. All further recovery shall abide by the decision to be made by respondent no.2.

Order Date :- 4.8.2021

M. Tariq